

HOUSE No. 691**The Commonwealth of Massachusetts**

PRESENTED BY:

Adam J. Scanlon and Michael P. Kushmerek*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the long-term fiscal health and sustainability of special education in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>1/17/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/17/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/25/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/29/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>1/30/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>1/31/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/31/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/31/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>2/3/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/4/2025</i>
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>2/7/2025</i>
<i>Simon Cataldo</i>	<i>14th Middlesex</i>	<i>2/7/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/7/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/9/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>2/14/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>2/14/2025</i>

<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>2/14/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/14/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/28/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/3/2025</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>3/4/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>3/4/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>3/10/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/14/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>3/16/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/19/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/19/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>3/19/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/24/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>3/28/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>9/8/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>10/28/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>2/2/2026</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>2/9/2026</i>

HOUSE No. 691

By Representatives Scanlon of North Attleborough and Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 691) of Adam J. Scanlon, Michael P. Kushmerek and others relative to the special education reimbursement program and for an investigation by a special commission (including members of the General Court) relative to the long-term fiscal health and sustainability of special education funding. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the long-term fiscal health and sustainability of special education in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) There shall be a special commission to study Chapter 71B and make
2 recommendations toward the long-term fiscal health and sustainability of Special Education
3 throughout the Commonwealth, and make recommendations to consider all matters pertaining to
4 the improvement of fiscal health and educational outcomes. The commission shall examine the
5 impact and efficacy of special education funding in the Commonwealth.

6 (b) The commission's review shall evaluate the commonwealth's current special
7 education financing structure and make recommendations to achieve the following goals:

8 (1) special education funds shall be sufficient to allow all schools to provide a high
9 quality education in the least restrictive environment that meets the unique needs of each eligible
10 student;

(2) special education funds provided to school districts shall recognize the variation in the resources that are required to provide students with different disabilities a high quality education;

(3) districts with more students receiving special education services shall equitably receive more state special education assistance funding than districts with fewer students receiving special education services;

(4) districts with less local resources shall equitably receive more state special education assistance funding than districts with more local resources;

(5) special education funds shall be relatively predictable and stable to enable school districts to budget effectively and implement multi-year plans; Circuit Breaker reimbursement not less than 90%.

(6) the special education funding system shall promote the efficient use of funds without incentivizing the under or misdiagnosis of students with disabilities;

(7) the special education funding system shall promote flexibility and innovation in providing high quality education;

(8) the special education funding system shall limit local financial responsibility for providing education to students with extraordinary needs; include circuit breaker reimbursement for Pre-K and kindergarten out of district placements.

(9) the special education funding system shall provide sufficient funds to meet the costs of transportation of special education students. Circuit Breaker Special Education transportation reimbursement not less than 90%.

31 (a) In carrying out the review, the commissioner of elementary and secondary education
32 shall provide to the commission any data and information relevant to the commission's charge.
33 The commissioner of elementary and secondary education shall furnish reasonable staff and
34 other support for the work of the commission.

35 (b) Prior to issuing its recommendations, the commission shall conduct not fewer than 4
36 public hearings across regions of the commonwealth.

37 (c) The special commission shall consist of the chairs of the joint committee on
38 education, the commissioner of education or designee, one member of the house of
39 representatives to be appointed by the speaker, one member of the senate to be appointed by the
40 senate president, and ten members to be appointed by the governor, one of whom shall be a
41 representative of the Massachusetts Administrators for Special Education, one of whom shall be
42 a representative of the Massachusetts Association of School Committees, one of whom shall be a
43 representative of the Massachusetts Association of School Superintendents, one of whom shall
44 be a member of Parent Teacher Association, one of whom shall be a member of the
45 Massachusetts Municipal Association, Inc., one of whom shall be a member of the
46 Massachusetts Business Alliance for Education, Inc., one of whom shall be a representative of
47 the Massachusetts School Counselors Association, one of whom shall be a representative of the
48 Massachusetts School Administrators Association, one of whom shall be a member of
49 Massachusetts Organization of Educational Collaboratives, one of whom shall be a member of
50 Massachusetts Association of School Business Officials, one of whom shall be a representative
51 of the Massachusetts Teachers Association, and one of whom shall be a representative of
52 American Federation of Teachers Massachusetts.

(d) It shall not constitute a violation of chapter 268A of the General Laws for a person employed by a school district to serve on the commission or to participate in commission deliberations that may have a financial impact on the district employing that person or on the rate at which that person may be compensated. The commission may establish procedures to ensure that no such person participates in commission deliberations that may directly affect the school districts employing those persons or that may directly affect the rate at which those persons are compensated.

(f) The commission shall file its report with the clerks of the house of representatives and the senate on or before June 30, 2027. A copy of the report and recommendations shall be made publicly available on the website of the department of elementary and secondary education and submitted to the joint committee on education, the joint committee on children, families and persons with disabilities, and the house and senate committees on ways and means.

SECTION 2. Section 5A of chapter 71B of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by striking out, in subsection (c), the number “75”, and inserting in place thereof the number “90”.

SECTION 3. (b) Section 5A of chapter 71B of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by inserting after the word “threshold.”, the following:
Transportation costs shall be reimbursed at 90%.

SECTION 4. Section 5A of chapter 71B of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by striking out, in subsection (a), after “Approved Costs Threshold”, the number “\$45,793”, and inserting in place thereof the number “\$37,120”.

SECTION 6. Said chapter 71B of the General Laws is:(a) hereby established, pursuant to section 2A of chapter 4 of the General Laws, a special education financing legislative commission to review the commonwealth's system for financing special education and make recommendations for a more equitable system that provides adequate funding to local school districts to meet the costs of providing high quality education to students with disabilities.

SECTION 7. Section 40 Chapter 4 E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following language: The Department of Elementary and Secondary Education shall, subject to appropriation, provide funding to educational collaboratives, as defined in this section, for a portion of the per pupil facilities needs component included in the Collaborative tuition amount and shall reimburse the sending school districts for said costs. In fiscal year 2025 and thereafter, such funding shall not be less than \$4320 per pupil and adjusted by the foundation inflation index, as defined in section 2 of chapter 70, in each subsequent year.